

VERMONT SUPERIOR COURT, CRIMINAL DIVISION — {county} UNIT{docketLine}
CRIMINAL DIVISION

JAMIE Q. SAMPLE,
Requester.

DOCKET NO.: [TO BE CONFIRMED]

REQUEST FOR ENTRY OF THE EXPUNGEMENT ORDER REQUIRED BY 13 V.S.A. § 7041(e)

STATUTORY AUTHORITY

13 V.S.A. § 7041(e) — Except as provided in subsection (h), the record of the criminal proceedings shall be expunged on discharge from probation, absent a finding of good cause by the court, and the court shall issue an order to expunge all records and files related to the arrest, citation, investigation, charge, adjudication of guilt, criminal proceedings and probation.

13 V.S.A. § 7041(a) — The deferred sentence itself — the predicate the request rests on: the case ended in a deferred sentence agreement rather than an ordinary sentence.

13 V.S.A. § 7041(e) (restitution proviso) — Notwithstanding the subsection, the record is not expunged until restitution has been paid in full. Carried so the request states the date restitution was satisfied and never asks for relief on an unpaid balance.

13 V.S.A. § 7041(h) — The one carve-out from the relief: VCIC retains a confidential special index of deferred sentences for sex offences requiring registration. Carried so the request never asks for relief the subsection withholds.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Vermont Superior Court, Criminal Division, [COUNTY TO BE CONFIRMED] Unit, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this request occurred in [COUNTY TO BE CONFIRMED] County, Vermont.

II. PARTIES

3. Requester is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, VT 00000.

4. Requester has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Requester was charged with [PARTICIPANT'S OWN DESCRIPTION OF THE CHARGE — NOT SUPPLIED BY LEGALEASE] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: deferred sentence agreement fulfilled; discharged from probation and adjudication of guilt struck. [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Requester may be eligible for expungement on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Requester may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Requester respectfully requests that this Court:

- (a) Grant this Request and enter an Order directing the expungement of all records and files related to the arrest, citation, investigation, charge, adjudication of guilt, criminal proceedings and probation in the docket identified in this request in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, VT 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by requester if required by the applicable form or local court rules.]

Prepared by requester using LegalEase RCAP. This is not an official court form.